

**IN THE COURT OF SH. PRANAV JOSHI, LD. ACJM, PATIALA HOUSE
COURT, NEW DELHI**

Misc. Application No. _____ of 2025

In

FIR No. 538/2024

IN THE MATTER OF:

State (Arun Kumar Jain)

....Complainant

Versus

Unknown Persons

.... Accused

FIR No. 538/2024 dated 27.11.2024

registered for offence U/s 318,319,61(2)

BNS,2023.

PS.: Special Cell, IFSO

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Place: New Delhi

Dated:

Applicant
(Through Counsel)

Through

MUKUL
Advocate for the Applicant
Ph. 7011865252
Office-E-303, Greater Kailash-2,
New Delhi

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**APPLICATION SEEKING COMPLIANCE OF ORDER DATED
05.12.2024 PASSED BY THE HON'BLE COURT IN THE ABOVE
CAPTIONED MATTER WHEREBY THE HON'BLE COURT WAS
PLEASED TO ALLOW THE APPLICATION SEEKING RELEASE OF
THE CHEATED AMOUNT.**

Most Respectfully showeth:

1. That the present application is being preferred by the present Applicant/
Complainant seeking compliance of order dated 05.12.2024 passed by the
Hon'ble Court in the above captioned matter whereby the Hon'ble Court
was pleased to allow the application seeking release of the cheated amount.

Copy of the order dated 05.12.2024 passed by the Hon'ble Court is annexed herewith and marked as **Annexure-1**.

2. That Applicant/Complainant was induced by the accused persons to invest in the share market on the pretext of earning exorbitant profits on WhatsApp and to make investments into the stock market through their platform. Information regarding investments were shared with the complainant through two WhatsApp groups namely (1) Bajaj Finserv-Bajaj SST-XAI INTERNATIONAL and (2) Saif India stock-VIP 205. Believing the representations made by the accused persons, the complainant invested a sum of 18,86,20,000/- from his two bank accounts (1) RBL Bank- Acc. No. 309811041129- and (2) AXIS Bank - Acc. No.5719609227- to 26 different bank accounts and later on, the complainant was denied access to such trading account.
3. That on the basis of the written complaint submitted by the Applicant, FIR No. 538/2024 was registered at PS. Cyber Cell, IFSO against unknown accused persons and the investigation in the present case is underway.
4. That subsequent to the registration of the FIR, the investigating agency had marked lien with respect to the bank accounts in which the cheated amount was transferred by the complainant on the basis of the inducement given by the accused persons. The lien was marked vide acknowledgment numbers no. 30811240054149 dated 21.11.2024, 30811240054434 dated 22.11.2024 and 208011240094743 dated 23.11.2024 for bank

accounts/mule bank accounts opened with Yes Bank, Axis Bank, State Bank of India, Punjab National Bank, Karnataka Bank Ltd, Indian Overseas Bank, Indian Bank, ICICI Bank, HDFC Bank, Federal Bank, Canara Bank, Bank of India and Bandhan Bank, which were used to perpetuate the present cyber fraud scam.

5. That since the Applicant is the lawful owner and claimant to the cheated amount, the applicant filed an application seeking the release of the cheated amount.
6. That the said application was marked by the Ld. CJM before this Hon'ble Court and vide order dated 05.12.2024, the Hon'ble Court was pleased to direct the above-mentioned banks to release the amount remaining in the respective bank accounts on which lien has been created vide the acknowledgment numbers no. 30811240054149 dated 21.11.2024, 30811240054434 dated 22.11.2024 and 208011240094743 dated 23.11.2024 in favour of the complainant in his RBL bank account.
7. That despite clear directions of the Hon'ble to the concerned banks, the cheated amount has not yet been released to the applicant in terms of the order passed by this Hon'ble Court and no clear explanation is being provided by the concerned banks for the non-compliance of the orders and directions passed by this Hon'ble court vide order dated 05.12.2024.
8. Further, the bank account statement of the Applicant for RBL bank a/c bearing no. 309811041129 would go to show that the cheated amount has

not yet been released in the bank account of the applicant despite the directions of the Hon'ble Court.

Copy of the statement of bank account no. 309811041129 registered in the name of the Applicant/Complainant with RBL bank is annexed herewith and marked as **Annexure-2**.

Copy of the statement of bank account no. 5719609227 registered in the name of the Applicant/Complainant with Axis bank is annexed herewith and marked as **Annexure-3**.

9. Therefore, by way of the present application, the present applicant prays that the Hon'ble court may be pleased to direct the concerned banks to comply with the orders dated 05.12.2024 and release the cheated amount to the complainant.

10. That the present application has been filed in the most *bona fide* manner and in the interest of justice.

PRAYER

It is therefore most respectfully prayed that the Hon'ble Court may be pleased to:

A. Pass necessary order and directions thereby the concerned banks to comply with the order and directions issued by this Hon'ble Court vide order dated 05.12.2024 and release the cheated amount to the Applicant.

AND

B. Pass any other appropriate orders and directions as the Hon'ble Court deems it fit and proper in light of the facts and circumstances of the case.

It is prayed accordingly.

Place: New Delhi

Dated:

Applicant
(Through Counsel)

Through

MUKUL
Advocate for the Applicant
Ph. 7011865252
Office-E-303, Greater Kailash-2,
New Delhi.

Additional Chief Judicial Magistrate-01
02, Ground Floor, Main Building
Patiala House Courts.

Complaint No. 330/2024
State (Arun Kumar Jain) v. Unknown Persons
PS Special Cell

05.12.2024

The present application marked to the undersigned by Ld. CJM, PHC,
NDD.

Present: Sh Lalan Kumar APP for the State.
IO Inspector Naresh in person.
Complainant alongwith Ld. Counsel Sh. Deepak
Tyagi.

An application seeking release of the cheated amount on which lien has been created vide acknowledgment No. 30811240054149 dated 21.11.2024, 30811240054434 dated 22.11.2024 and 20811240094743 dated 23.11.2024 through NCRP Portal.

IO submits that the money which is transferred from the account of the complainant, was transferred to different bank accounts. The money trail consists of hundreds of bank accounts but they can be identified through the acknowledgement generated NCRP portal. He submits that the money lying in the said accounts may be released to the complainant after giving directions to the concerned banks to release the same as per the acknowledgment No. 30811240054149 dated 21.11.2024, 30811240054434 dated 22.11.2024 and 20811240094743 dated 23.11.2024.

Submissions heard.

The concerned banks are directed to release the amount remaining in the respective accounts on which lien has

been created vide acknowledgment No. 30811240054149 dated 21.11.2024, 30811240054434 dated 22.11.2024 and 20811240094743 dated 23.11.2024 through NCRP portal in favour of the complainant in his RBL bank account No. 309811041129.

IO is also directed to communicate this order to the respective banks for the release of the amount to the complainant as aforesaid.

Application stands disposed of.

Copy of the order be given dasti to complainant as well as to the IO.



(Pranav Joshi)
ACJM-01/PHC/ND
05.12.2024
Cohy Dast



Accountholder Name : MR. ARUN KUMAR JAIN

Customer Address : B 539 NEAR GURUDWARA NEW FRIENDS COLONY
SOUTH DELHI
NEW FRIENDS COLONY
DELHI - 110025
DELHI
INDIA

Home Branch : NEW FRIENDS COLONY (0383)
Home Branch Address : 17, FRIENDS COLONY COMMUNITY
NEW DELHI 110025.
NA
DELHI - 110025
DELHI
INDIA

Phone : +91(0)9811041129
Email Id : ARUNRISHABDEO@GMAIL.COM
Joint Holder1 :
Joint Holder2 :
Nomination : BINDU JAIN
CIF ID : 103731558
A/c Currency : INR
A/c Open Date : 18-Sep-2022
A/c Type : INSIGNIA PREFERRED BANKING PERSONAL
A/c Status : ACTIVE

IFSC/RTGS/NEFT : RATN0000363
MICR Code : 110176047
ECS A/c No. : 309811041129
Sanction Limit : 0.00
Drawing Power : 0.00
Branch Timings : 10:00 AM-5:00 PM (MON - FRI)
Call Center : +91-22-61156300
Branch Phone Num : 022-6115 6300

CKYC_No : XXXXXXXXXX8392

Statement Of Transactions In Savings Account No. 309811041129

Period : 01-12-2024 to 09-01-2025

DATE	TRANSACTION DETAILS	CHQ NO.	VALUE DATE	WITHDRAWAL AMT	DEPOSIT AMT	BALANCE AMT
						138,799.00Cr
16-Dec-2024	NEFT/000412809438/RBIS/ITD	133	16-Dec-2024	2,840.00		135,959.00Cr
20-Dec-2024	RTGS/AUBLH24355823070/ARUN KUMAR JAIN/AUBL/002649		20-Dec-2024		900,000.00	1,035,959.00Cr
21-Dec-2024	NEFT/S058243565519484/DASTAGIR FISH TRADERS/SRCB/0		21-Dec-2024		17,750.00	1,053,709.00Cr
30-Dec-2024	NEFT/000415122153/RBIS/ITD	134	30-Dec-2024	28,488.00		1,025,221.00Cr
31-Dec-2024	NEFT/N366243482339851/ASPIRE PHARMACY/HDFC/001712		31-Dec-2024		395.00	1,025,616.00Cr
31-Dec-2024	309811041129:INT.Pd:01-10-2024 to 31-12-2024		31-Dec-2024		13,072.00	1,038,688.00Cr
01-Jan-2025	CHQ DEP/562262/OWDEL1/IDIB/NEHR/A		01-Jan-2025		135,000.00	1,173,688.00Cr
01-Jan-2025	NEFT/ICIN300100148898/ACHYUTAM ATMANIRBHAR FOUNDAT		01-Jan-2025		3,361.10	1,177,049.10Cr
01-Jan-2025	NEFT/ICIN300100148899/VIKAS KUMAR CHAWRIYA/ICIC/00		01-Jan-2025		12,217.15	1,169,266.25Cr
01-Jan-2025	NEFT/ICIN300100148900/SNMHS INFRA PVT LTD/ICIC/000		01-Jan-2025		3,555.31	1,192,821.56Cr
01-Jan-2025	NEFT/ICIN300100148896/CARETAS PHARMACEUTICAL PRIVA		01-Jan-2025		13,008.36	1,205,829.92Cr
01-Jan-2025	NEFT/ICIN300100148897/MORYA ENTERPRISES/ICIC/00010		01-Jan-2025		159.00	1,205,988.92Cr
01-Jan-2025	NEFT/AXSK250010004864/PRITAM SARKAR/UTIB/003677		01-Jan-2025		50,000.00	1,255,988.92Cr
04-Jan-2025	COURT ORDER BRANCH ROUTING CLEAR		04-Jan-2025		1,619.00	1,257,607.92Cr
07-Jan-2025	REC_ACK 30811240054149/REGU SUNDRY LIABILITY BRA		07-Jan-2025		6,422.69	1,264,030.61Cr
08-Jan-2025	CHQ DEP/562267/OWDEL1/IDIB/NEHR/A		08-Jan-2025		67,500.00	1,331,530.61Cr



Page Total :	null	null	1,331,530.61Cr
Grand Total :	31,328.00	1,224,059.61	1,331,530.61Cr

Statement Summary

Opening Bal : 138,799.00Cr Count Of Debit : 2

Closing Bal : 1,331,530.61Cr Count Of Credit : 14

Eff Avail 1,595,817.61 Unclr Bal : 0.00 Lien Aml : 0.00 Pend Service 0.00

(As On : 09-01-2025 12:25:46)

Printing Details : 42992 : 0363 : 09-01-2025 12:25:46

We are committed to provide products and services of highest standards. However, at any point of time should you feel we have not met your expectation you may reach us using any of the following options :

- Contact our 24X7 contact centre @ +91-22-61156300
- Visit any of your nearest RBL Bank branch
- Write to us customercare@rblbank.com
- Visit our website www.rblbank.com to refer to our Grievance Redressal

This document should not be considered as an Invoice as per GST legislation. GST compliant Invoice will be issued separately as per statutory timeline.

In the event that you do not receive any response within one month from the date of your complaint, or if you are dissatisfied with the response given, you may write to the Banking Ombudsman for an independent review. Please visit "<http://bankingombudsman.rbi.org.in>" for further

This is system generated report and does not require signature and stamp. Any discrepancy in the statement should be brought to the notice of RBL Bank Limited within one month from date of statement.

****END OF STATEMENT****



Umar

**ARUN K JAIN**

Joint Holder :-

B-539

NEW FRIENDS COLONY

NEW DELHI

NEW DELHI

110021

Registered Mobile No :XXXXXX1129

Registered Email ID:arXXXXeo@gmail.com

Scheme :BURGUNDY - SAVINGS ACCOUNT

Customer ID :960771397

IFSC Code :UTIB0005140

MICR Code :110211389

Nominee Registered : Y

Nominee Name :BINDU JAIN

PAN :AADPJ0661K

Statement of Account No :5719609227 for the period (From : 01-12-2024 To : 09-01-2025)

Tran Date	Chq No	Particulars	Debit	Credit	Balance	Init. Br
		OPENING BALANCE			977820.26	
07-12-2024	87897	BRN-CLG-CHQ PAID TO New A K Enterpr/UNION BANK OF	4500.00		973320.26	2568
16-12-2024		NEFT/UCBAH24351595363/RIZWAN COLLECTION/UCO BANK/FAST/		50000.00	1023320.26	248
17-12-2024	87898	BRN-CLG-CHQ PAID TO Friends Club Li/IDBI BANK LTD	11160.00		1012160.26	2568
20-12-2024		ECOM PUR/PTM*IGL/NOIDA/201224/14:58/894403	9908.18		1002252.08	5140
21-12-2024		NEFT/BARBS24356052003/RADHAKISHAN/BANK OF BARODA/		7.00	1002259.08	248
26-12-2024	87899	BRN-CLG-CHQ PAID TO Icici Bank Cred/ICICI BANKING	17270.00		984989.08	2568
26-12-2024	87901	TRF/1540/HELPING HOPE/TRANSFER	3300.00		981689.08	1540
01-01-2025		SB:5719609227:Int.Pd:01-10-2024 to 31-12-2024		9527.00	991216.08	5140
06-01-2025		NEFT/000416405312/BR ROUTING/RBL BANK LIMITED/		2000.00	993216.08	248
		TRANSACTION TOTAL	46138.18	61534.00		
		CLOSING BALANCE			993216.08	

Unless the constituent notifies the bank immediately of any discrepancy found by him/her in this statement of Account, it will be taken that he/she has found the account correct.

The closing balance as shown/displayed includes not only the credit balance and / or overdraft limit, but also funds which are under clearing. It excludes the amount marked as lien, if any. Hence the closing balance displayed may not be the effective available balance. For any further clarifications, please contact the Branch.

We would like to reiterate that, as a policy, Axis Bank does not ask you to part with/disclose/revalidate of your iConnect passord,login id and debit card number through emails OR phone call Further,we would like to reiterate that Axis Bank shall not be liable for any losses arising from you sharing/disclosing of your login id, password and debit card number to anyone. Please co-operate by forwarding all such suspicious/spam emails, if received by you, to customer.service@axisbank.com

With effect from 1st August 2016, the replacement charges for Debit card and ATM card applicable on Current accounts have been revised. To know more about the applicable charges,please visit www.axisbank.com

Deposit Insurance and Credit Guarantee Corporation (DICGC) insurance cover is applicable in all Banks' deposits, such as savings, current, fixed, recurring etc* up to maximum amount of Rs 5 Lakh including principal & interest both* (* for exceptions and details please refer www.dicgc.org.in)

In compliance with regulatory guidelines, the non-CTS cheque books attached to the accounts would be destroyed in banks core banking System. Thus, Non CTS cheques will not be valid for CASH, Clearing and Transfer transactions

REGISTERED OFFICE - AXIS BANK LTD,TRISHUL,Opp. Samartheswar Temple, Near Law Garden, Ellisbridge, Ahmedabad. 380006.This is a system generated output and requires no signature.

BRANCH ADDRESS - AXIS BANK LTD, null, GROUND FLOOR DLF CAPITOL POINT, BABA KHARAK SINGH ROAD, CONNAUGHT PLACE, 110001, NEW DELHI, DELHI, INDIA. TEL: FAX:

Legends :

ICONN - Transaction trough Internet Banking

VMT-ICON - Visa Money Transfer through Internet Banking



IN THE COURT OF Sh. Praveen Joshi, Ld. ACJM, PHC, New DelhiSuit / Appeal No. _____
In Re:-FIR No. 538/2024State

Piff / Applt. / Petitioner / Complainant

VERSUS

Unknown Persons

Defdt. / Respt. / Accused

KNOW ALL to whom these present shall come that I, Anur Kumar Jain The above namedComplainant do hereby appoint.

Adv. Mukul

01/4394/2020

To office- 303, E, Greater Kailash-II,
New Delhi.
Ph- 7011865252

(herein after called the advocate/s) to be my/our Advocate in the above-noted case authorize them:- To act, and plead in the above -noted cause in this Court or in any other Court in which the same may be tried or and also in the appellate Court including High Court subject to payment of fees separately for each court by

To sign, file, verify and present pleadings, appeals, cross-objections or petitions for execution or revision, withdrawal, compromise or other petitions or affidavits or other documents as may be deemed necessary or proper for the prosecution of the said case in all its stages subjects to payment of fees for each stage.

To file and take back documents, to admit and/or deny the documents of opposite party.

To withdraw or compromise the said case or submit to arbitration any difference or disputes that arise touching or in any manner relating to the said case.

To take execution proceedings

The deposit, draw and receive money, cheque/s, cash and grant receipts hereof and to do all other things which may be necessary to be done for the progress and in the course of the prosecution of the case.

To appoint and instruct any other Legal Practitioner authorizing him to exercise the power and authority hereby conferred upon the Advocate whenever he may think fit to do so and to sign the power of attorney on my behalf.

And I/We the undersigned do hereby agree to ratify and confirm all acts done by the Advocate or substitute in the matter as my/our own acts, as if done by me/us to all intents and purposes.

And I/We undertaken that I/We or my/our duly authorized agent would appear in Court on all hearings and will inform the Advocate for appearance when the case is called.

And I/We undersigned do hereby agree not to hold the advocate or his substitute responsible for the result of the said cause. The adjournment costs whenever ordered by the Court shall be of the Advocate, which he shall receive and retain for himself.

And I/We the undersigned do hereby agree that in the event of the whole or part of the fee agreed by me/us to be paid to the advocate remaining unpaid he shall be entitled to withdraw from the prosecution of the said case until the same is paid up. The fee settled is only for the above case and above Court. I/We hereby agree that once the fee is paid, I/We will not be entitled for the refund of the same in any cause whatsoever and if the case prolongs for more than 3 years the original fee shall be paid again by me/us.

IN WITNESS WHERE OF I/We do hereunto set my/our hand to these presents the contents of which have been understood by me/us on this 10.01.2024 Day of Jan 2024 125
Accepted subject to the terms of the fees.

[Signature]
Advocate

[Signature]
Client

[Signature]
Client

